

involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

The declaration of Plaintiff's attorney Jay S. Rothman indicates that upon receipt of discovery responses of Defendant Christopher Pyle, CPA, Inc., he became aware of additional issues to include in an amended complaint including alleged noncompliance with meal and rest breaks and incorrect wage statements (Declaration ¶¶ 4). These alleged deficiencies were discovered in May of 2026, and the proposed FAC addresses those issues. A red-line copy is attached to Plaintiff's motion outlining the changes in the complaint. The reasoning for not filing the motion earlier is "because no trial date has yet been set" (Declaration ¶¶ 9).

Defendants' opposition focuses on knowledge by Plaintiff, and that she should have/did know of the alleged deficiencies in 2023, yet the opposition fails to cite authority that the Plaintiff should be prohibited from amending based on her awareness of facts that could have been pleaded in the original complaint. Defendants' argument challenges the factual sufficiency of the FAC as well, although acknowledging it is not asking the court to adjudicate a demurrer in advance. (Opposition Section D).

The court finds a lack of prejudice by granting leave to amend. The court also finds that the redline copy is sufficient to comply with California Rule of Court § 3.1324. And while Plaintiff's statement is they didn't file the motion earlier because of lack of a trial date, it should be noted that according to the Declaration of Plaintiff's attorney, after the discovery received in May he attempted to obtain a stipulation from defense counsel. After that was rejected, the motion was filed on 7.30.26.

Plaintiff's Motion for Leave to File First Amended Complaint GRANTED.

Plaintiff to file the Proposed First Amended Complaint attached as Exhibit 1 to the Motion within 5 days.

Case Management Conference continued to 10.09.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600939	SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC.	DEMURRER ON COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC.

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material

facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Workers' Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Labor Code § 3600(a).) If these conditions do not exist, the employee may bring a civil action. (Labor Code §§3600-3602.) As stated in *Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund* (2001) 24 Cal.4th 800, 811-812, if the acts are a normal part of the employment relationship or worker's compensation process, or the motive does not violate a fundamental state policy, then the cause of action is barred; otherwise, it may go forward. The court focused on whether the "acts or motives that establish the elements of the cause of action and considers whether these acts or motives constitute 'a risk reasonably encompassed within the compensation bargain. [citation.] If they do, then the exclusive remedy provisions govern and bar the cause of action. If they do not, then the exclusive remedy provisions are inapplicable because the malfeasor is *no longer* acting as an 'employer' as understood in these provisions." (*Id.* at 819-820.) The exclusivity rule does not apply when the distress arises out of an employer's illegal discrimination practice or harassment. (*Nazir v. United Airlines* (2009) 178 Cal.App.4th 243, 288.)

The Complaint alleges "Plaintiff Jerry Sprague was employed by Defendant Procraft Construction, Inc as a heavy equipment operator." (Comp. p.5.) On the day Plaintiff was injured, he was working at the Palm Springs Homeless Navigation Center. (*Ibid.*) Plaintiff's supervisor told him to grab a 6 by 6 foot spool and take it to a location that required him to walk through trenches. (*Ibid.*) "Plaintiff came to a trench he had to walk by around the corner and the trench didn't have a walkway bigger than eight inches. As he attempted to walk by the trench, the side of the trench gave way as one leg went into the trench and the other leg stayed topside while the spool plaintiff had on his shoulder landed on his ankle and tore his ligaments." (*Ibid.*) The allegations make clear Plaintiff was injured during the course and scope of his employment with Defendant Pro-Craft Construction. This means the workers' compensation exclusivity rule applies. Plaintiff then alleges Defendant Tilden-Coil Constructors, Inc. is liable for his injuries because it "knew of a concealed, dangerous condition on the property with the trenches that the contractor Pro-Craft Construction, Inc., could not have reasonably discovered and the general contractor failed to warn of those dangers." (Comp. p.5.) Plaintiff alleges Defendants Tilden-Coil, Mike Zarp, Inc., and Giant Power Systems, Inc., "negligently owned, designed, constructed, maintained the trenches and did not install the proper protection systems including benching, shielding, shoring, trench boxes and/or placing caution tape." (*Ibid.*) Finally, Plaintiff alleges "Defendant Procraft Construction Inc. acted recklessly and in absolute disregard for its employee safety by making plaintiff, a heavy

equipment operator, work the job of a laborer which is against union rules and to carry more than 100 pounds walking between trenches.” (Ibid.)

In Opposition, Plaintiff argues two exceptions to the workers’ compensation exclusivity rule apply – the dual capacity exception and the fraudulent concealment exception. Plaintiff does not explain either exception or provide any legal authority in support of either exception. Even if these exceptions apply, Plaintiff has not pled in the Complaint that the exceptions apply or provided any facts to support applying the exceptions.

Defendant Pro-Craft Construction, Inc’s Demurrer is SUSTAINED as to Plaintiff’s Complaint in its entirety.

Plaintiff to file amended complaint within 15 days.

Case Management Conference continued to 10.21.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600939	SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC.	MOTION TO STRIKE COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC.

Tentative Ruling: Defendant Pro-Craft Construction, Inc’s Motion to Strike is deemed MOOT in light of the court’s ruling on Defendant’s Demurrer to Plaintiff’s Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2605126	KINT VS. MID-CENTURY INSURANCE COMPANY, A SUBSIDIARY OF FARMERS INSURANCE	HEARING ON PETITION FOR COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. No proof of service of petition on file. Hearing is continued to 9.29.26.